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No. 149.—VOL. III.

SATURDAY, NOVEMBER 6, 1886.

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Aneityum, like the other islands of the New Hebrides, is of volcanic origin, and it is surrounded by coral reefs. No minerals have been found; and in this connection it is worthy of remark that Australians insist that there is a much closer natural affinity between the New Hebrides and Fiji than there is between the New Hebrides and New Caledonia, which is an island rich in minerals. Mr Brenchley enumerates the principal indigenous products of Aneityum as bread-fruit, banana, cocoa-nut, horse-chestnut, sago-palm, another species of palm bearing small nuts, sugar-cane, taro—the staple article of food—yams in small quantities, sweet-potatoes, and arrowroot. Of fruits, &c., introduced, the orange, lime, lemon, citron, pine-apple, custard-apple, papaw-apple, melons, and pumpkins, have succeeded. The cotton

plant had also been introduced, and promised well; and French beans were grown for the Sydney market. There are more than a hundred species of ferns on the island, and more than a hundred species of fish in the waters surrounding it. But the fish are not all edible, and besides being different from, are inferior to those found in the northern hemisphere. The birds are not very numerous; but butterflies and insects abound, in the case of the latter the list being lengthened by the importation of fleas by Europeans. Among themselves, the natives barter fishing-baskets, nets, sleeping-mats, hand-baskets, pigs, fowls, taro, and cocoa-nuts. With foreigners, they barter pigs, fowls, taro, bananas, cocoa-nuts, sugar-cane, &c., for European clothing, hatchets, knives, fish-hooks, and so forth. Their weapons are spears, clubs, bows and arrows—the spears being rude and very crooked.

Of Tanna, another of the southern division of the group, many interesting notes have been left by Mr Brenchley and Dr Turner. It is about forty or fifty miles from Aneityum, and has a somewhat narrow anchorage, called Port Resolution Bay. On the west side of this bay there is a large and preternaturally active volcano, which pulsates in a regular sequence of eruptions at intervals of five, seven, or ten minutes, night and day, all the year round. The regularity of the eruptions is supposed to be caused by the influx of water into the volcano from a lake which lies at its base. Tanna is nearly circular, and between thirty-five and forty miles across. It is covered with lofty hills, bright with verdure.

Mr Brenchley stated the population at fifteen to twenty thousand; but Dr Turner placed it at only ten or twelve thousand; and Turner, who resided for some months on the island, is likely to be nearer the mark. The people are of middle stature, and of a copper colour naturally, although some of them are as black as New Hollanders, through artificial dyeing of their skins. They are rather better-looking than average Papuans, but make themselves hideous with red paint. The men frizzle their hair, which is oftener light-brown than black in colour; the women wear the hair short, but 'laid out in a forest of little erect curls about an inch and a half long.' They pierce the septum of the nose, and insert horizontally a small piece of wood; and in their ears they wear huge ornaments of tortoise-shell. They do not tattoo. The women wear long girdles, hanging to the knee, made of the dried fibre of banana stalks; and the men wear an unsightly waistcloth of matting. Their weapons are clubs, bows and arrows, and spears, with which they are

very expert, and they always work and sleep with their weapons by their sides. They are, in fact—or were, when Dr Turner lived among them—a race of warriors, for the tribes were incessantly at war with each other. ‘We were never able,’ says Dr Turner, ‘to extend our journeys above four miles from our dwelling at Port Resolution. At such distances we came to boundaries which were never passed, and beyond which the people spoke a different dialect. At one of these boundaries, actual war would be going on; at another, kidnapping and cooking each other; and at another, all might be peace, but, by mutual consent, they had no dealings with each other.... When visiting the volcano one day, the natives told us about a battle in which one party which was pursued ran right into the crater, and there fought for a while on the downward slope inside the cup!’

The climate of Tanna is damp for four months of the year, when fever and ague are common; but it is agreeable during the remainder of the year; and the average annual temperature is about eighty-six degrees. The soil, on account of the volcanic origin, is extremely fertile, and there are a number of boiling springs.

Erromango, to the north of Tanna, is celebrated for its massacres of missionaries and white settlers, and it was here that Mr Williams was murdered many years ago. This island is covered with dense vegetation down to the very water’s edge. It contains a great deal of fine timber, such as sandal-wood, kauri pine, &c. The population was estimated at about five thousand by both Mr Brenchley and Dr Turner. The people are very much like the Tannese, but are without any settled villages or considerable chiefs. The Erromangan women tattoo the upper part of their bodies, and wear leaf-girdles hanging from waist to heel; but the men prefer nudity. Neither infanticide nor euthanasia seems to prevail here, but the sick are not particularly well cared for. Dr Turner traced a belief in witchcraft and some belief in a future state. The spirits of the dead are supposed to go eastward, and some are thought to roam about in the bush.

Vaté or Sandwich Island, still to the north, is another interesting member of the group. It has attracted many Australians and others, who have attempted settlements, but not, we believe, with success as yet. Dr Turner calls it a ‘lovely island’—although, whether it compares with the island of Aurora, one of the most northerly of the group, which Mr Walter Coote says is a perfect earthly paradise, we cannot tell. Vaté, at anyrate, is very lovely, and

seems to be of coral formation. Its size is about one hundred miles in circumference, and its population perhaps, ten thousand—although Dr Turner said twelve thousand. There is no general king, but a large number of petty chiefs. The people are more fully clothed than those of the other islands we have referred to; they do not tattoo—they only paint the face in war; they wear trinkets and armlets; and they live in regular villages. There are several dialects, but not such diversity as in Tanna. They do not fight so much as the Tannese; but have clubs, spears, and poisoned arrows. Infanticide, unfortunately, is prevalent, and seems to be the consequence of the practice of the women having to do all the plantation and other hard work.

In Vaté, they have no idols, and they say that the human race sprang from stones and the earth. The men of the stones were *Natamoli nefat*, and the men of the earth *Natamoli natana*. The native name of the island is Efat or Stone—which has been corrupted into Vaté. The principal god is Supu, who created Vaté and everything on it; and when a person dies, he is supposed to be taken away by Supu. Ancestor-worship is also practised, and the aged were often buried alive at their own request.

The island of Vaté is high above the sea, of an irregular outline, and distinguished by some fine bold features. ‘We could see,’ says Mr Brenchley, ‘high mountains, whose summits seemed clad with verdure, while the thick woods towards their base formed, as it were, a girdle which spread downwards as far as the beach.’ Ashore, he saw high reed-grass, wild sugar-canes ten feet high, and vast plantations of banana and coconut. The soil is of remarkable fertility; but the island is subject to frequent shocks of earthquake, sometimes very violent. The climate is damp, but not unhealthy. Of the natives, we have read differing accounts, one describing them as among the best, and another as among the worst of New Hebridean aborigines, with a remarkably developed and insatiable craving for human flesh. The happy mean is probably near the truth, that is to say, they are neither better nor worse than the rest of their race, and are very much as the visitor makes them.

BY ORDER OF THE LEAGUE.

BY FRED. M. WHITE.

IN TWENTY CHAPTERS.—CHAP. XII.

COOLLY, as if the whole transaction had been a little light recreation, and untroubled in conscience, as if the fatal card had fallen to Maxwell by pure chance, instead of base trickery, Le Gautier turned his steps in the direction of Fitzroy Square. It was a matter of supreme indifference to him now whether Maxwell obeyed the dictum of the League or not; indeed, flat rebellion would have suited his purpose better, for in that case he would be all the sooner rid of; and there was just a chance that the affair with Visci might end favourably; whereas, on the other hand, a refusal would end fatally for the rash man who defied the League. Men can face open danger; it is the uncertainty, the blind groping in the dark, that wears body and mind out, unstrings the nerves, and sometimes unseats reason. Better fight with fearful odds, than walk out with the shadow of the sword hanging over one night and day. The inestimable Frenchman had seen what defiance to the League generally came to; and as he reviewed his rosy prospects, his bright thoughts lent additional flavour to his cigarette. Nevertheless, his heart beat a trifle faster as he pulled the bell at the quiet house in Ventnor Street. Adventures of this sort were nothing novel to him; but he had something more at stake here than the fortunes of the little blind boy and the light intrigue he looked for. Miss St Jean was in, he found; and he was shown up to her room, where he sat noting the apartment—the open piano, and the shaded waxlights, shining softly—just the proper amount of light to note charms by, and just dim enough to unite confidences. As he noted these things, he smiled, for Le Gautier was a connoisseur in the graceful art of love-making, and boasted that he could read women as scholars can expound abstruse passages of the earlier classics, or think they can, which pleases them equally. In such like case, the Frenchman was about to fall into a similar error, never dreaming that the artistically arranged room with its shaded lights was a trap to catch his soul. He waited impatiently for the

coming fair one, knowing full well that she wished to create an impression. If such was her intention, she succeeded beyond expectation.

With her magnificent hair piled up upon her small shapely head, and its glossy blackness relieved only by a single diamond star, shining like a planet on the bosom of the midnight sky, with a radiant smile upon her face, she came towards him. She was dressed in some light shimmering material, cut low upon the shoulders; and round the corsage was a wreath of deep red roses, a crimson ribbon round the neck, from which depended a diamond cross. She came forward murmuring a few well-chosen words, and sank into a chair, waiting for Le Gautier to recover.

He had need of time to recover his scattered senses, for, man of the world as he was, and acquainted with beauty as he was, he had never seen anything like this before. But he was not the sort to be long taken aback; he raised his eyes to hers with a mute homage which was more eloquent than words. He began to feel at home; the dazzling loveliness threw a spell upon him, the delicious mystery was to his liking; and he was tête-à-tête.

‘I began to think I had failed to interest you sufficiently last night,’ Isodore commenced, waving her fan slowly before her face. ‘I began to imagine you were not coming to take pity on my loneliness.’

‘How could you dream such a thing?’ Le Gautier replied in his most languishing voice. His pulses began to beat at these last words. ‘Did I not promise to come? I should have been here long since, but sordid claims of business detained me from your side.’

‘It must have been pressing business,’ Isodore laughed archly. ‘And pray, what throne are you going to rock to its foundations now?’

Had Le Gautier been a trifle less vain, he would have been on his guard when the conversation took so personal a turn; but he was flattered; the question betokened an interest in himself. ‘How would it interest you?’ he asked.

‘How do you know that it would not? Remember, that though I am bound by no oath, I am one of you. Anything connected with the League, anything connected with yourself, cannot fail to interest me.’

The words ran through Le Gautier’s frame like quicksilver. He was impulsive and passionate; these few minutes had almost sufficed to seal his

thralldom. He began to lose his head. 'You flatter me,' he said joyously. 'Our business to-night was short; we only had to choose an avenging angel.'

'For Visci, I suppose?' Isodore observed with some faint show of interest. 'Poor man! And upon whom did the choice fall?'

'A new member, curiously enough. I do not know if you are acquainted with him: his name is Maxwell.'

'May he prove as true to the cause as—as you are. I have never had the fortune to be present on one of these occasions. How do you manage it? Do you draw lots, or do you settle it with dice?'

'On this occasion, no. We have a much fairer plan than that. We take a pack of cards; they are counted, to see if they are correct; then each man present shuffles them; a particular one represents the fatal number, and the president of the assembly deals them out. Whoever the chosen one falls to has to do the task in hand.'

'That, I suppose, must be fair, unless there is a conjurer presiding,' Isodore observed reflectively.—'Who was the president to-night?'

'I myself. I took my chance with the others, you must understand.'

Isodore did not reply, as she sat there waving her fan backwards and forwards before her face. Le Gautier fancied that for a moment a smile of bitter contempt flashed out from her eyes; but he dismissed the idea, for, when she dropped the fan again, her face was clear and smiling.

'I am wearying you,' she said, 'by my silly questions. A woman who asks questions should not be allowed in society; she should be shut away from her fellow-creatures, as a thing to be avoided. I am no talker myself, at least not in the sense men mean.—Shall I play to you?'

Le Gautier would have asked nothing better than to sit there feasting his eyes upon her matchless beauty; but now he assented eagerly to the suggestion. Music is an accomplishment which forces flirtation; besides which, he could stand close to her side, turning over the leaves with opportunities which a quiet conversation never furnishes. Taking him at his word, she sat down at the instrument and commenced to play. It might have been brilliant or despicably bad, opera or oratorio, anything to the listener; he was far too deeply engrossed in the player to have any sense alive to the

music. Perfectly collected, she did not fail to note this, and when she had finished, she looked up in his passionate face with a glance melting and tender, yet wholly womanly. It took all Le Gautier's self-command to restrain himself from snatching her to his heart in his madness and covering the dark face with kisses. He was reckless now, too far gone to disguise his admiration, and she knew it. With one final crash upon the keys she rose from her seat, confronting him.

'Do not leave off yet,' he urged, and saying this, he laid his hand upon her arm. She started, trembling, as if some deadly thing had stung her. To her it was a sting; to him, the evidence of awaking passion, and he, poor fool, felt his heart beat faster. She sat down again, panting a little, as from some inward emotion. 'As you please,' she said. 'Shall I sing to you?'

'Sweeter than the voice of the nightingales to me!' he exclaimed passionately. 'Yes, do sing. I shall close my eyes, and fancy myself in paradise.'

'Your imagination must be a powerful one.—Do you know this?'

Isodore took a piece of music from the stand, a simple Italian air, and placed it in his hands. He turned over the leaves carelessly, and returned it to her with a gesture of denial. There was a curious smile upon her lips as she sat down to sing, a smile that puzzled and bewildered him.

'Do you not know it?' she asked, when the last chords died away.

'Now you have sung it, I think I do. It is a sentimental sort of thing, do you not think? A little girl I used to know near Rome sang it to me. She, I remember, used to imagine it was my favourite song. She was one of the romantic schoolgirls, Miss St Jean, and the eyes she used to make at me when she sang it are something to be remembered.'

Isodore turned her back sharply and searched among the music. If he could only have seen the bitter scorn in the face then—scorn partly for him, and wholly for herself. But again she steeled herself.

'I daresay you gave her some cause, Monsieur Le Gautier,' she said. 'You men of the world, flitting from place to place, think nothing of breaking a country heart or two. You may not mean it, perhaps, but so it is.'

‘Hearts do not break so easily,’ Le Gautier replied lightly. ‘Perhaps I did give the child some cause, as you say. *Pardieu!* a man tied down in a country village must amuse himself, and a little unsophisticated human nature is a pleasant chance. She was a little spitfire, I remember, and when I left, could not see the matter in a reasonable light. There is still some bitter vengeance awaiting me, if I am to believe her words.’

‘Then you had best beware. A woman’s heart is a dangerous plaything,’ Isodore replied. ‘Do you never feel sorry, never experience a pang of conscience after such a thing as that? Surely, at times you must regret?’

‘I have heard of such a thing as conscience,’ Le Gautier put in airily; ‘but I must have been born before they came into fashion. No, Miss St Jean, I cannot afford to indulge in luxuries.’

‘And the League takes up so much of your time. And that reminds me. We have said nothing yet about your insignia. I may tell you now that it is not yet in my hands; but I shall obtain it for you. How bold, how reckless you were that night, and yet I do not wonder! At times, the sense of restraint must bear heavy upon a man of spirit.’

‘Thank you, from the bottom of my heart,’ Le Gautier fervently exclaimed. ‘You are too good to me.—Yes,’ he continued, ‘there are times when I feel the burden sorely—times like the present, let us say, when I have a foretaste of happier things. If I had you by my side, I could defy the world.’

Isodore looked at him and laughed, her wonderful magnetic smile making her eyes aglow and full of dazzling tints.

‘That could not be,’ she said. ‘I would have no divided attentions; I would have a man’s whole heart, or nothing. I have too long been alone in the world not to realise what a full meed of affection means.’

‘You should have all mine!’ Le Gautier cried, carried away by the torrent of his passions. ‘No longer should the League bind me. I would be free, if it cost ten thousand lives! No chains should hold me then, for, by heaven, I would not hesitate to betray it!’

‘Hush, hush!’ Isodore exclaimed in a startled whisper. ‘You do not understand what you are saying. You do not comprehend the meaning of your words. Would you betray the Brotherhood?’

‘Ay, if you but say the word—ten thousand Brotherhoods.’

‘I am not bound by solemn oath like you,’ Isodore replied sadly; ‘and at times I think it could never do good. It is too dark and mysterious and too violent to my taste; but you are bound in honour.’

‘But suppose I was to come to you and say I was free?’ Le Gautier asked hoarsely. ‘To tell you that my hands were no longer fettered—what words would you have to say to me then—Marie?’ He hesitated before he uttered the last word, dwelling upon it in an accent of the deepest tenderness. Apparently, Isodore did not notice, for her eyes were sad, her thoughts evidently far away.

‘I do not know what I should say to you—in time.’

‘Your words are like new life to me,’ Le Gautier exclaimed; ‘they give me hope and strength, and in my undertaking I shall succeed.’

‘You will do nothing rash, nothing headstrong, without telling me. Let me know when you are coming to see me again, and we will talk the matter over; but I fear, without treachery, you never can be free.’

‘Anything to be my own master!’ he retorted fervently.—‘Good-night, and remember that any step I may take will be for you.’ With a long lingering pressure of the hand and many burning glances, he was gone.

Isodore heard his retreating footsteps echoing down the stairs, and thence along the silent street. The mask fell from her face; she clenched her hands, and her countenance was crossed with a hundred angry passions. Valerie entering at that moment, looked at her with something like fear.

‘Sit down, Valerie,’ Isodore whispered hoarsely, in a voice like the tones of one in great pain, as she walked impatiently about the room, her hands twisted together convulsively. ‘Do not be afraid; I shall be better presently. I feel as if I want to scream, or do some desperate thing to-night. He has been here, Valerie; how I sustained myself, I cannot tell.’

‘Did he recognise you?’ Valerie asked timidly.

‘Recognise me? No, indeed! He spoke about the old days by the Mattio woods, the old times when we were together, and laughed at me for a romantic schoolgirl. I nearly stabbed him then. There is treachery afloat; his plan is prospering. As I told you it would be, Maxwell is chosen for the

Roman mission; but he will never do the deed, for I shall warn Visci myself. And he was my bro——Visci's friend!

'But what are you going to do now?' Valerie asked.

'He is a traitor. He is going to betray the League, and I am going to be his confidant. I saw it in his face. I wonder how I bear it—I wonder I do not die! What would they say if they saw Isodore now?—Come, Valerie, come and hold me tightly in your arms—tighter still. If I do not have a little pity, my poor heart will break.'

Long and earnestly did Salvarini and Maxwell sit in the latter's studio discussing the events of the evening, till the fire had burnt down to ashes and the clock in the neighbouring steeple struck three. It was settled that Maxwell should go to Rome, though with what ulterior object they did not decide. Time was in his favour, the lapse of a month or so in the commission being a matter of little object to the League. They preferred that vengeance should be deferred for a time, and that the blow might be struck when it was least expected, when the victim was just beginning to imagine himself safe and the matter forgotten.

'I suppose I had better lose no time in going?' Maxwell observed, when they had discussed the matter thoroughly. 'Time and distance are no objects to me, or money either.'

'As to your time of departure, I should say as soon as possible,' Salvarini replied; 'and as to money, the League finds that.'

'I would not touch a penny of it, Luigi—no, not if I was starving. I could not soil my fingers with their blood-money.—What do you say to my starting on Monday night? I could get to Rome by Thursday morning at the latest.—And yet, to what good? I almost feel inclined to refuse, and bid them do their worst.'

'For heaven's sake, do not!' Salvarini implored. 'Such a thing is worse than folly. If you assume a readiness to fulfil your undertaking, something may turn up in your favour.' Maxwell gazed moodily in the dead ashes, and cursed the hot-headed haste which had placed him in that awful position.

Like every right-minded man, he shrank with horror from such a cowardly crime.

‘You will never attain your ends,’ he said. ‘Your cause is a noble one; but true liberty, perfect freedom, turns against cold-blooded murder; for call it what you will, it is nothing else.’

‘You are right, my friend,’ Salvarini mournfully replied. ‘No good can come of it; and when reprisals come, as they must, they shall be swift and terrible. —But Frederick,’ he continued, laying his hand on the other’s shoulder, ‘do not blame me too deeply, for I will lay down my own life cheerfully before harm shall come to you.’

Maxwell was not aware that Sir Geoffrey Charteris was a member of the League, as Le Gautier had taken care to keep them apart, so far as business matters were concerned, only allowing the baronet to attend such meetings as were perfectly harmless in their general character, and calculated to inspire him with admiration of the philanthropic schemes and self-denying usefulness of the Brotherhood; nor was it the Frenchman’s intention to admit him any deeper into its secrets; indeed, his admission only formed part of the scheme by which the baronet, and through him his daughter, should be entirely in the Frenchman’s power. The cards were sorted, and, once Maxwell was out of the way, the game was ready to be played. All this the artist did not know.

With a heavy heart and a foreboding of coming evil, he made the simple preparations for his journey. He had delayed to the last the task of informing Enid of his departure, partly from a distaste of alarming her, and partly out of fear. It would look more natural, he thought, to break it suddenly, merely saying he had been called to Rome on pressing business, and that his absence would not be a prolonged one. Till Saturday, he put this off, and then, bracing up his nerves, he got into his cab, and was driven off rapidly in the direction of Grosvenor Square. He was roused from his meditations by a shock and a crash, the sound of broken glass, the sight of two plunging horses on the ground—roused by being shot forward violently, by the shouts of the crowd, and above all, by the piercing scream of a woman’s voice. Scrambling out as best he could, he rose to his feet and looked around. His cab had come violently in collision with another in the centre of Piccadilly. A woman had attempted to cross hurriedly; and the two

cabs had swerved suddenly, coming together sharply, but not too late to save the woman, who was lying there, in the centre of an eager, excited crowd, perfectly unconscious, the blood streaming down her white face, and staining her light summer dress. A doctor had raised her a little, and was trying to force some brandy between the clenched teeth, as Maxwell pushed his way through the crowd.

‘Nothing very serious,’ he said, in answer to Maxwell’s question. ‘She is simply stunned by the blow, and has sustained, I should say, a simple fracture of the right arm. She must be moved from here at once.—If you will call a cab, I will take her to a hospital.’

‘No, no!’ Maxwell cried, moved to pity by the pale fair face and slight girlish figure. ‘I am mainly responsible for the accident, and you must allow me to be the best judge. My cab, you see, is almost uninjured; put her in there, and I will tell you where to drive.’

They lifted the unconscious girl and placed her tenderly on the seat. There were warm hearts and sympathetic hands there, as you may notice on such occasions as these, and there was a look of feeling in every face as the cab drove slowly away.

‘Go on to Grosvenor Square,’ Maxwell instructed his man. ‘Drive slowly up New Bond Street. We shall be there as soon as you.’

They arrived at Sir Geoffrey’s house together, considerably astonishing the footman, as, without ceremony, they carried the sufferer in. Alarmed by strange voices and the shrieks of the servants, who had come up at the first alarm, Enid made her appearance to demand the meaning of this unseemly noise; but directly she heard the cause, as coherently as Maxwell could tell her, her face changed, and she became at once all tenderness and womanly sympathy.

‘I knew you would not mind, darling,’ he whispered gratefully. ‘I hardly knew what to do, and it was partly my fault.’

‘You did quite right. Of course I do not mind. Fred, what do you take me for?’ She knelt down beside the injured woman there in the hall, in the presence of all the servants, and helped to carry her up the stairs.

Lucrece looked on for a moment, and then a startled look came in her face. ‘Ah!’ she exclaimed, ‘I know that face—it is Linda Despard.’

Enid heard these words, but did not heed them at the time. They carried the girl into one of the rooms and laid her on the bed. At a sign from the doctor, the room was cleared, with the exception of Enid and Lucrece, and the medical man proceeded to look to the broken limb. It was only a very simple fracture, he said. The gravest danger was from the shock to the system and the wound upon the forehead. Presently, they got her comfortably in bed, breathing regularly, and apparently asleep. The good-natured doctor, waving aside all thanks, left the room, promising to call again later in the day.

FOUNDLING QUOTATIONS.

QUOTATIONS play no small part in conversation and general literature. There are some which we know must inevitably be made under certain circumstances. It is almost impossible, for instance, for the conventional novelist, when he wants to convey to his readers the fact that his heroine's nose is of a particular order—which, formerly, through our lack of invention, we could only describe by a somewhat ungraceful term—to avoid quoting Lord Tennyson's description of the feature as it graced Lynette's fair face—'Tip-tilted like the petal of a flower.' We feel sure that it must come; and there is now, happily, no occasion for a young lady in the position of one of Miss Braddon's earlier heroines, when listening to a detailed description of her appearance, to interrupt the speaker, as he is about to mention the characteristics of her nose, with a beseeching, 'Please, don't say *pug*!'

And then, does anybody ever expect to read a description of a certain celebrated Scotch ruin, without being told that

If thou wouldst view fair Melrose aright,
Go visit it by the pale moonlight?

or to get through an account of the ancient gladiatorial games at Rome without coming across the line,

Butchered to make a Roman holiday?

You know, perhaps, what praise Mark Twain took to himself because he did *not* quote this line. 'If any man has a right,' he says, 'to feel proud of himself and satisfied, surely it is I; for I have written about the Coliseum, and the gladiators, the martyrs, and the lions, and yet have never used the phrase, "Butchered to make a Roman holiday." I am the only free white man of mature age who has accomplished this since Byron originated the expression.' This little piece of self-congratulation rather reminds one of the

lady who was accused of never being able to write a letter without adding a P.S. At last, she managed to write one without the usual addition; but when she saw what she had succeeded in doing, she wrote: 'P.S.—At last, you see, I have written a letter without a P.S.' And so, though Mark Twain managed to steer clear of the hackneyed quotation in the body of his account, he could not help running against it in a P.S.

Then we have all the multitude of Shakspearean quotations which are sure to be heard in their accustomed places, many of which, indeed, have become—to quote again—such 'household words,' that to very many people they do not appear to be quotations at all, but merely every-day expressions, of the same order as 'A fine day' or 'A biting wind.'

Again, when we read of some cheerful fireside scene, when the curtains are drawn closely against the winter wind that is roaring round the house, and the logs are crackling and spitting in the grate, and the urn is hissing and steaming upon the table, don't we know that a reference to the 'cup which cheers but not inebriates' is certainly coming? This, by the way, is a line that is almost invariably incorrectly quoted, and it is the usual and incorrect form that we have given. We shall leave our readers to turn up the line for themselves, and see what the correct form is, and then, perhaps, the trouble they will thereby have had will serve to impress it upon their minds, and prevent them again quoting it incorrectly.

But it was not with the intention of talking about these well-known and every-day quotations from Tennyson, Scott, Byron, Shakspeare, and Cowper that we thought of writing this paper. We want to talk about a few quotations, quite as well known as those to which we have already alluded, which have been so bandied about that all trace, or nearly all trace, of their original parish and paternity has been lost; and, though they are as familiar to us as the most hackneyed phrases from our best known poets, no one can say with certainty by whom they were first spoken or written.

A good many wagers have been made as to the source of the well-known and much-quoted couplet:

He that fights and runs away,
May live to fight another day.

The popular belief is that they are to be found in Butler's *Hudibras*. But the pages of that poem may be turned over and over again, and the lines will not be found in them. We may as well say at once that they cannot be found anywhere in the exact form in which they are usually quoted. The late Mr James Yeowell, formerly sub-editor of *Notes and Queries*, once thought that he had discovered their author in Oliver Goldsmith, as a couplet, varying very slightly from the form we have given, occurs in *The Art of Poetry on a New Plan*, which was compiled by Newbery—the children's publisher—more than a century ago, and revised and enlarged by Goldsmith. But the lines are to be found in a book that was published some thirteen years before *The Art of Poetry*, namely, Ray's *History of the Rebellion*. There they appear as a quotation, and no hint is given as to the source from which they are taken. Ray gives them as follows (first edition, 1749, page 54):

He that fights and runs away,
May turn and fight another day.

Though this is the earliest appearance in print of the exact words, or almost the exact words, in which the quotation is now usually given, it is by no means the earliest appearance of a similar thought. Even as far back as Demosthenes we find it. It appears, too, in Scarron, in his *Virgile Travesti*, if we remember rightly. And now we must confess that the still prevailing belief that the lines occur in *Hudibras* is not entirely without a *raison d'être*, and it is not impossible that Ray may have thought he was quoting Butler, preserving some hazy and indistinct recollection of lines read long ago, and putting their meaning, perhaps quite unwittingly and unconsciously, into a new and unauthorised form. This, however, is mere conjecture. The lines, as they appear in *Hudibras* (part iii. canto iii., lines 243, 244), are as follows:

For those that fly, may fight again,
Which he can never do that's slain.

We may just add that Collet, in his *Relics of Literature*, says that the couplet occurs in a small volume of miscellaneous poems by Sir John Mennis, written in the reign of Charles II. With this book, however, we are

unacquainted, and cannot, therefore, discuss the appearance of the foundling lines in it, or what claims its author may have to be their legitimate parent.

All readers of Tennyson—and who that reads at all is not numbered amongst them?—know well the opening stanza of *In Memoriam*:

I held it truth, with him who sings
To one clear harp in divers tones,
That men may rise on stepping-stones
Of their dead selves to higher things.

These lines contain another quotation of the order we have designated as ‘Foundling Quotations.’ Who is the singer, ‘to one clear harp in divers tones,’ to whom Lord Tennyson refers? Passages from Seneca and from St Augustine (Bishop of Hippo) have been suggested as inspiring the poet when he penned the lines; but neither Seneca nor St Augustine can be said to *sing* ‘to one clear harp in divers tones.’ Perhaps the most reasonable hypothesis is that Lord Tennyson had in his mind Longfellow’s beautiful poem of *St Augustine’s Ladder*, the opening lines of which are:

Saint Augustine! well hast thou said,
That of our vices we can frame
A ladder, if we will but tread
Beneath our feet each deed of shame!

and the closing ones:

Nor deem the irrevocable Past
As wholly wasted, wholly vain,
If, rising on its wrecks, at last
To something nobler we attain.

The question, however, though Lord Tennyson is still alive, is one that is not likely ever to be clearly solved; for we have very good authority for

saying that he has himself quite forgotten of what poet or verses he was thinking when he composed the first stanza of *In Memoriam*.

The equally well-known

This is truth the poet sings,
That a sorrow's crown of sorrow is remembering happier things,

in *Locksley Hall*, refers, of course, to the line in Dante's *Inferno*.

The trite 'Not lost, but gone before,' might alone provide subject-matter for a fairly long essay. Like the other quotations which we are discussing, it can be definitely assigned to no author. The thought can be traced back as far as the time of Antiphanes, a portion of whose eleventh 'fragment,' Cumberland has translated, fairly literally, as follows:

Your lost friends are not dead, but gone before,
Advanced a stage or two upon that road
Which you must travel, in the steps they trod.

Seneca, in his ninety-ninth Epistle, says: 'Quem putas periisse, præmissus est' (He whom you think dead has been sent on before); and he also has: 'Non amittuntur, sed præmittuntur' (They are not lost, but are sent on before), which corresponds very closely with the popular form of the quotation. Cicero has the remark that 'Friends, though absent, are still present;' and it is very probable that it is to this phrase of Cicero that we are really indebted for the modern, 'Not lost, but gone before.' We may note that Rogers, in his *Human Life*, has, 'Not dead, but gone before.'

Then there is the somewhat similar, 'Though lost to sight, to memory dear,' which no one has succeeded in satisfactorily tracing to its original source. It was said, some years ago, that the line was to be found in a poem published in a journal whose name was given as *The Greenwich Magazine*, in 1701, and written by one Ruthven Jenkyns. The words formed the refrain of each stanza of the poem. We give one of them as a sample:

Sweetheart, good-bye! the fluttering sail

Is spread to waft me far from thee;
And soon before the fav'ring gale
My ship shall bound upon the sea.
Perchance all desolate and forlorn,
These eyes shall miss thee many a year,
But unforgotten every charm—
Though lost to sight, to memory dear.

Mr Bartlett, however, in the last edition of his *Dictionary of Quotations*, has demolished this story of Mr Ruthven Jenkyns; and the line is still unclaimed and fatherless. Probably, as in the case of the last mentioned, 'Not lost, but gone before,' its germ is to be found in an expression of Cicero.

There is a Latin line familiar to all of us, 'Tempora mutantur, nos et mutamur in illis' (The times change, and we change with them), which we are frequently hearing and seeing. This is a much-abused line; probably there is none more so; and we do not think we shall be guilty of exaggeration if we say that it is misquoted ten times for every time it is correctly cited. The positions of the *nos* and the *et* are usually interchanged; the result being, of course, a false quantity; for the line is a hexameter. Now, who first wrote this line? The answer must be, as in the cases of all our other 'Foundling Quotations,' that we do not know. But in this particular instance we may venture to be a little more certain and definite in our remarks concerning its pedigree than we have dared to be in previous ones. There can be little doubt that the line is a corruption of one to be found in the *Delitiæ Poetarum Germanorum* (vol. i. page 685), amongst the poems of Matthias Borbonius, who considers it a saying of Lotharius I., who flourished, as the phrase goes, about 830 A.D. We give the correct form of the line in question, and the one which follows it:

Omnia mutantur, nos et mutamur in illis;
Illa vices quasdem res habet, illa suas.

There is another foundling Latin line, almost as frequently quoted as the one we have just been discussing, namely, 'Quos Deus vult perdere, prius dementat' (Whom the gods would destroy, they first madden). Concerning this there is a note in the fifth chapter of the eighth volume of Mr Croker's

edition of Boswell's *Life of Johnson*, in which it is said to be a translation from a Greek iambic of Euripides, which is quoted; but no such line is to be found amongst the writings of Euripides. Words, however, expressing the same sentiment are to be found in a fragment of Athenagoras; and it is most likely that the Latin phrase now so commonly quoted is merely a translation from this writer's Greek, though by whom it was first made we cannot say. The same sentiment has been expressed more than once in English poetry.

Dryden, in the third part of *The Hind and the Panther*, has:

For those whom God to ruin has designed,
He fits for fate, and first destroys their mind.

And Butler writes in *Hudibras* (part iii. canto ii., lines 565, 566):

Like men condemned to thunder-bolts,
Who, ere the blow, become mere dolts.

Further consideration will probably bring to the reader's mind other examples of these 'Foundling Quotations' which have won for themselves an imperishable existence; though their authors, whose names these few-syllabled sentences might have kept alive for ever, if they were only linked the one with the other, are now utterly unknown and forgotten. Any one who can succeed in discovering the real authorship of the quotations we have been considering will win for himself the credit of having solved problems which have long and persistently baffled the most curious and diligent research.

MISS MASTERMAN'S DISCOVERY.

IN TWO CHAPTERS.—CHAP. I.

MISS PHŒBE MASTERMAN was a spinster over whose head some fifty summers had flown—with, it may be presumed, incredible swiftness to herself. She was very comfortably situated with regard to this world's goods, having inherited ample means from her father, a native of Durham, who had made a considerable fortune as a coal-merchant. At the time of her father's death, she was thirty-five; and as she had no near relative in whom to interest herself, she established an Orphanage for twelve girls at Bradborough, a market-town in the north of England, within two miles of the coast. Brought up in the strictest conformity with Miss Masterman's peculiar views, dressed with the most rigid simplicity, fed on the plainest fare, taught to look upon the mildest forms of recreation as vanity and vexation of spirit, these fortunate orphans, one would think, could hardly fail to become virtuous and happy; yet, inconceivable as it may appear, there were legends that orphans had been seen with red eyes and countenances expressive of anything but content; there was even a dark rumour to the effect that one of them had been heard to declare that if she only had the opportunity she would gladly commit a crime, that she might be sent to prison, and so escape from the thralldom of Miss Masterman!

But even this ingratitude and depravity paled before that of the Rev. Shanghan Lambe, incumbent of the little church of St Mary's. Now, Miss Masterman had built that church for the good of the district, and the living was in her own gift. Yet Mr Lambe, entirely ignoring the latter fact, had had the hardihood to baptise an orphan in Miss Masterman's absence without previously obtaining the permission of that lady; upon which the indignant lady declared that unless he promised not to interfere with her orphans, she would withdraw all her subscriptions and leave him to find his own income. Nor was this all. There were other reasons to make Mr Lambe pause before quarrelling with Miss Masterman. Before he was appointed to St Mary's, he had been only a poor curate with a stipend of fifty pounds a year, which munificent income he had found totally inadequate to his wants and those

of an aged mother who was dependent on him; consequently, he had entered upon his duties at Bradborough shackled with small debts to the amount of a hundred pounds.

Miss Masterman, who made a point of inquiring into every one's affairs, soon became aware of this, and as want of generosity was by no means to be numbered among her failings, she rightly judged that it would not be reasonable to expect a man to give his mind to his work if he were weighed down by other cares; so, in an evil hour for himself, poor Mr Lambe accepted from the lady a sum of money sufficient to defray his debts—a sum for which, as he soon found, he would have to pay compound interest in the way of blind obedience to Miss Masterman's behests. Not a funeral could be performed, not a marriage could be solemnised, not an infant could be baptised, without Miss Masterman's permission; and it was even asserted by some that Miss Masterman selected the texts for the poor man's sermons! The only oasis in his desert was the annual departure of Miss Masterman for change of air; then, and then only, did Mr Lambe breathe in peace. For a brief period, he felt that he was really master of himself. He could sit down and smoke his pipe without fear that his sitting-room door would be rudely flung open by an imperious female of fierce aspect, who would lecture him on his sinful extravagance in the use of tobacco, when he couldn't pay his debts.

One bright August morning, Miss Masterman was seated at her breakfast table, and having concluded her meal, had taken up the morning paper and was studying the advertisements, holding the paper at arm's-length with an air of grim combativeness, as if she were prepared to give battle to any or all the advertisers who did not offer exactly what she sought. Suddenly, she pounced upon the following: 'A Home is offered in a Country Rectory by a Rector and his family for two or three months to a Single Lady needing change of air. House, with large grounds, conservatories, pony-carriage, beautiful scenery.—Address, Rector, *Clerical Times Office*.'

'That will do,' said Miss Masterman to herself; and, with her usual promptitude, she sat down then and there and wrote to the advertiser, asking particulars as to terms, &c. And in due course she received an answer so perfectly satisfactory in every respect, that the end of the month found her comfortably installed in the charming rectory of Sunnydale, in the county of Hampshire, in the family of the Rev. Stephen Draycott, rector of Sunnydale.

The rector's family, besides himself and his wife, consisted of two sons and two daughters, all grown up, with the exception of Master Hubert, a boy of ten years old, who was endowed with such a remarkable fund of animal spirits that he was the terror of the neighbourhood; and from the first moment of Miss Masterman's arrival, he became the special *bête noire* of that lady. With all the other members of the family, Miss Masterman was much pleased. The rector himself was a polished and dignified person, and by the extreme, if rather laboured, courtesy of his manners, he endeavoured to tone down the somewhat exuberant spirits of the rest of his family. Mrs Draycott was a gentle, refined matron, with a sweet, though rather weary face, and was simply adored by her husband and children. The two daughters, Adela and Magdalen, were charming girls, full of fun, and very popular with their two brothers, of whom the senior, Clive, was aged nineteen.

To the young people, Miss Masterman's arrival was little short of a calamity; they were so much in the habit of freely stating their opinions on all subjects without restraint, that the presence of a stranger appeared to them an unmitigated bore. It was in vain that their mother reminded them that the handsome sum paid by Miss Masterman for her board would be a very desirable addition to the family exchequer. At a sort of cabinet council held after she had retired to her room the first night after her arrival, Master Hubert expressed, in schoolboy slang, his conviction that she was a 'ghastly old crumpet;' a nickname which she retained until a servant one day brought in a letter which, she said, was addressed to 'Miss Pobe Masterman;' from which moment, Miss Masterman went by the name of 'Pobe' till the end of her visit—a piece of irreverence of which that lady happily remained quite unconscious.

By the time Miss Masterman had settled down in her new abode, the principal ladies of the parish came to call upon her; and as some of them were not only rich but very highly connected, Miss Masterman greatly appreciated their kind attentions. Among them was a Lady O'Leary, an Irish widow, with whom Miss Masterman soon struck up a great intimacy. Lady O'Leary was generally believed to be a person of large fortune; but as this supposition was based entirely on her own representations with regard to property in Ireland, there were some sceptical spirits who declined to believe in it as an established fact. Lady O'Leary shared three furnished

rooms with a Miss Moone, who lived with her as companion; and it soon became quite an institution for Miss Masterman to take tea with her two or three times a week at least. On these occasions, the two ladies—for Miss Moone discreetly withdrew when Lady O’Leary had visitors—discussed all the affairs of the parish, until, by degrees, they got upon such thoroughly confidential terms, that before long they had imparted to each other their joint conviction that the general moral tone of the parish was lamentably low, and that it was doubtless owing in a great measure to the deplorably frivolous conduct of the family at the rectory; for Miss Masterman had discovered, to her amazement and horror, that the rector not only permitted his daughters to read Shakspeare, but even gave them direct encouragement to do so. Nor was this all; he actually was in the habit, once a year, of taking all his children up to London to see the pantomime at Drury Lane!

Among the more frequent visitors at the rectory was a Mrs Penrose, an exceedingly pretty young widow, who had recently taken a small house in the village, where she lived very quietly with an old servant, who appeared greatly attached to her mistress. The widow, who was apparently not more than five-and-twenty, was a charming brunette, with sparkling black eyes, and hair like waves of shining brown satin; and her sweet face and animated manners made her generally very popular in the village, where she visited the poor and assisted the rector in various parochial works of charity. Especially was she a favourite at the rectory, not only with Mr and Mrs Draycott, but with the young people, her presence in the family circle invariably giving rise to so much hilarity, that even the rector was attracted by the general merriment, and would leave his study to come and sit with his family, and allow himself to join in their mirth at Mrs Penrose’s lively sallies. Indeed, he had even been heard to declare, in Miss Masterman’s hearing, to that lady’s unspeakable disgust, that when he was fagged and worried with the necessary work of a parish, a few minutes of Mrs Penrose’s cheerful society acted on his mind like a tonic.

Miss Masterman, from the first, had taken an extraordinary antipathy to Mrs Penrose, who appeared to her to be everything that a widow ought not to be! Her bright face and unflagging spirits were a constant offence to the elder lady, though she had often been told that the late Captain Penrose was such a worthless man that his early death, brought about entirely by his own excesses, could be nothing but an intense relief to his young widow, who

was now enjoying the reaction, after five years of married misery. Miss Masterman's dislike to Mrs Penrose was fully shared by her friend Lady O'Leary; and they both agreed that the widow was in all probability a designing adventuress, and deplored the infatuation which evidently blinded the rector as to her real character, for, as Lady O'Leary observed: 'Though it was given out that Mrs Penrose was the particular friend of *Mrs Draycott*, the rector's partiality was obvious!'

Miss Masterman had been at Sunnydale for six weeks, when one morning she received a letter from her housekeeper, informing her that Mr Lambe had taken upon himself to remark that the orphans were looking pale and jaded, and that he was going to take them all to spend a day at the seaside. Miss Masterman, on reading this letter, felt most indignant, and at once wrote to Mr Lambe to forbid the proposed excursion; and after enumerating the many obligations under which she had laid him—not forgetting the hundred pounds she had lent him—she concluded by expressing her surprise that he should presume to interfere with her special protégées in any way whatever.

To this Mr Lambe replied that he was 'extremely sorry if he had offended Miss Masterman; that he had imagined that she would be pleased for the orphans to have the treat, particularly as some of them looked far from well; but that, having promised the children, it was impossible for him to break his word, particularly as he had ordered a van for their conveyance and made all the necessary arrangements for the trip; he therefore trusted that Miss Masterman would forgive him if he still kept his promise to his little friends.'

Furious at this unexpected opposition to her will, Miss Masterman at once went in search of Mrs Draycott to inform her that it was necessary for her to go home for a week or ten days on business of importance. Finding that Mrs Draycott was not at home, she repaired to the rector's study, and after knocking at the door, and being told to enter, she informed Mr Draycott of her intentions. Saying that she must write home at once, she was about to withdraw, when Mr Draycott courteously asked her if she would not write in the study, to save time, as he was just going out. Miss Masterman thanked him; and as soon as he had gone, sat down and wrote to her housekeeper to say that she would be at home the following day without fail. Having finished her letter, she was about to leave the room, when she

observed a note in a lady's handwriting, which had apparently slipped out of the blotting-pad on to the floor. She picked it up, and was about to return it to its place, when the signature, 'Florence Penrose,' caught her eye. 'What can that frivolous being have to say to the rector?' thought Miss Masterman; and feeling that her curiosity was too strong to be resisted, she unfolded the note, and read the following words:

MY DEAR FRIEND—I have just received the diamonds, which are exactly what I wanted. The baby's cloak and hood will do very well. I have now nearly all that I require. My only terror is, lest our secret should be discovered.—In great haste. Yours, as ever,

FLORENCE PENROSE.

P.S.—I hope you won't forget to supply me with plenty of flowers.

Here was a discovery! For a few moments Miss Masterman sat motionless with horror; her head was in a whirl, and she had to collect her thoughts before she could make up her mind what to do. The first definite idea that occurred to her was to secure the note; the next was, to show it to Lady O'Leary and to discuss with her what was to be done. As soon, therefore, as she had completed all her arrangements for her journey on the morrow, she repaired to her friend's lodgings; and after Lady O'Leary had fairly exhausted all the expletives that even her extensive Irish vocabulary could supply, to express her horror and detestation of the conduct of the rector and Mrs Penrose, the two ladies laid their heads together, and seriously discussed the advisability of writing to the bishop of the diocese and sending him the incriminating letter. However, they finally decided to do nothing before Miss Masterman's return to Sunnydale; and in the meantime, Lady O'Leary undertook to be on the watch, and to keep her friend *au courant* as to what was going on in the parish.

It was late that evening when Miss Masterman returned to the rectory, and by going up directly to her room, she avoided meeting the rector. The next morning she pleaded headache as an excuse for having her breakfast sent up to her; and did not come down until, from her window, she had seen Mr Draycott leave the house, knowing he would be away for some hours. He left a polite message with his wife, regretting that he had not been able to say good-bye in person to Miss Masterman.

‘The wily hypocrite!’ thought that lady. ‘He little thinks that his guilt is no secret to me. But such atrocity shall not go unpunished!’

When she took leave of Mrs Draycott, she astonished that lady by holding her hand for some moments as she gazed mournfully into her face; then, with a final commiserating glance, the worthy spinster hurried into her fly. As she drove away, she leant forward and waved her hand to the assembled family with such effusion, that Mrs Draycott exclaimed: ‘Dear me, I fear I have done Miss Masterman injustice. I had no idea that she possessed so much feeling as she showed just now. One would really think she was going for good, instead of only ten days!’

‘No such luck,’ cried the irrepressible Hubert. ‘But, at all events, we have got rid of her for a week at least; so now, we’ll enjoy ourselves, and forget all about “Pobe” till she turns up again!’—a resolution which the young gentleman did not fail to keep most faithfully.

In the meantime, Miss Masterman was busily employed at Bradborough in quelling orphans and other myrmidons, and reducing things in general to complete subjection to her will; but with regard to Mr Lambe, she found her task more difficult than she expected. In fact, the worm had turned; and on her summoning him to her presence and opening the vials of her wrath on his devoted head, he calmly but firmly announced his intention of sending his resignation to his bishop; which took Miss Masterman so completely by surprise, that, in her bewilderment, she actually asked him to reconsider his decision. But though she even went so far as to give her consent to the orphans having their coveted treat, Mr Lambe’s determination was not to be shaken.

The following week flew swiftly away; a good deal of correspondence devolved upon Miss Masterman through having to think of a successor to Mr Lambe, and the lady of the manor was very much worried. At last, however, everything was settled, and Miss Masterman began to think of returning to Sunnydale, where, as she felt, fresh anxieties and most painful duties awaited her.

POPULAR LEGAL FALLACIES.^[1]

BY AN EXPERIENCED PRACTITIONER.

DEEDS OF GIFT AND WILLS.—I.

ONE of the most universally believed fallacies is that it is better to make a deed of gift than a will for the disposal of property. Nothing can be more dangerous than this delusion, as we have often had occasion to observe in the course of our experience. A deed of gift—pure and simple—is a document under seal evidencing the fact that certain property specified therein has been absolutely given by the donor to the donee, without any reservation for the benefit of the former, or any power for him to revoke the gift or resume possession of the property in any circumstances. If the deed contains a condition that the donor shall have the enjoyment of the property during his life, and that he shall have a right to recall the gift thereby made, and dispose of the property in some other way, then the document is to all intents and purposes a will; and if it is only executed and attested as an ordinary deed, it is altogether void, in consequence of non-compliance with the directions contained in the Wills Act, 1837, which very properly requires more precautions against fraud and forgery in the case of a will than in the case of a deed. We say ‘very properly,’ because the will does not take effect during the lifetime of the testator; and therefore the greatest safeguard is removed by his death before the document can be acted upon or its authenticity be likely to be questioned. This is a common oversight. The deed is prepared and duly stamped; and in consequence of the insertion of the powers alluded to above, it proves to be utterly useless, when, after the decease of the donor, his property is claimed by his heir-at-law and next of kin because of his having died intestate. It may occasion some surprise that any solicitor will prepare a deed which he knows cannot stand the test of litigation; but this is not altogether the fault of the profession. In many cases, the danger is pointed out; but if the donor is determined to dispose of his own property in his own way, who can gainsay him? If he cannot get what he requires in one office, he will go to another; and we have several

times lost clients in consequence of our refusal to prepare such a deed; all our arguments being met by the reply that there would be no duties to pay to the government if the deed were executed; a complete fallacy in many cases, as we have afterwards had occasion to know, when we have seen what followed the decease of the misguided donor.

On the other hand, if there is a genuine gift, and possession is given in accordance with the deed, what then? One case which came under our notice may illustrate the danger against which we have frequently protested in vain. A retired merchant invested the whole of his savings in a freehold estate which would produce sufficient annual income to supply all his wants and leave a good margin for future accumulations. Being a widower, in somewhat infirm health, he took up his residence in the house of his younger son, the elder being an irreclaimable reprobate. Unfortunately, the wife of this younger son was an artful and avaricious woman, whose sole reason for consenting to the arrangement as to residence was the hope of future gain. The old gentleman had an insurmountable objection to making a will—not an uncommon weakness—as it reminded him too forcibly of the time when he would have to leave his fine estate and go over to the great majority. At length, after urgent and repeated representations as to the risk of his estate being sold by his dissipated heir-at-law in case of his dying intestate, he was persuaded to execute a deed of gift to his younger son, to whom at the same time he handed the title-deeds relating to the estate. Soon afterwards, a quarrel arose between the donor and his daughter-in-law; and the latter persuaded her husband—whose moral principles were as weak as those of his brother, though in a different way—to sell the estate, and then turn his father out of his house. After his ignominious dismissal, the poor old gentleman went to the house of a nephew, who soon tired of supporting him; and eventually he was obliged to go into the workhouse, altogether neglected to the time of his death by all his relatives, except his graceless elder son; and alas! he could not assist his aged parent, as he was himself almost destitute. This may appear to be an extreme case; but it is not a solitary one, although it is one of the worst of those which have come under our own observation.

This brief narrative may serve as an introduction to the explanation of one remarkable peculiarity in the practical working of a deed of gift of real estate. Personal property may of course be sold, and the sale completed by

delivery of the goods or other chattels to the purchaser; but actual possession of land is no clue to the ownership thereof, the title being evidenced by deeds in the general way, the exceptions being those cases in which land has descended to the heir in consequence of the intestacy of the former owner; and also those cases in which long-continued possession has given an impregnable title to a person who was originally a mere trespasser, or at the most a tenant whose landlord has been lost sight of. When the freehold estate above mentioned was given away and the gift was evidenced by deed and actual possession, the donor lost the power of again giving it away either by deed or by his will. But he might have sold the property if he could have found a purchaser willing to complete without actual possession of the title-deeds; which, however, he might afterwards have recovered from the holder thereof; the reason for this being, that where there are two inconsistent titles, both derived from the same person, but one depending upon an actual sale and payment by the purchaser of the price agreed upon, while the other rests upon no better foundation than a mere voluntary act on the part of the donor, the title of the purchaser will prevail, because of the valuable consideration which he has paid; while the other person has paid nothing. On the other hand, if the donee, before he is dispossessed or his title superseded by a conveyance for value, were to sell the property, and if the sale were completed and the purchase-money paid, the donor would have lost his right to sell. Having placed the donee in a position to make a good title to the property, he must take the consequences of his own folly. We once had the pleasure of saving for the benefit of the vendor the value of an estate which he had previously given away; greatly to the astonishment of the donee, who supposed himself to be safely possessed of the whole estate.

It will be understood that our remarks have no application to marriage settlements or similar documents in which extensive though limited powers of appointment are generally reserved to the settler, the power extending over the whole estate or a specified part thereof; while the persons to be the beneficiaries are strictly defined; and powers are also given to him to direct the payment of portions to his younger children, and to charge them upon the estate which is comprised in the settlement. This is the legitimate way in which a landed proprietor can provide for his family; and the only serious objection which has ever been made thereto is that it has a tendency to perpetuate the descent of the estates, instead of their distribution and

subdivision into smaller properties. But these documents are beyond the scope of this paper. What we strongly object to are voluntary deeds of gift, which are generally made for the purpose of avoiding the payment of legacy and succession duty, but lead too frequently to disastrous consequences. They are beneficial to the legal profession, often leading to costly and harassing litigation; but to the intended recipients of the bounty of the donor, and sometimes to the donor himself, they are in a corresponding degree injurious.

Attention may here be called to the provisions of the Customs and Inland Revenue Act, 1881, on the subject of voluntary gifts of personal property made for the purpose of avoiding the payment of the duties accruing due on the death of the owner of personal estate. By this Act, duty is payable at the like rates as the ordinary probate duty on voluntary gifts which may have been made by any person dying after 1st June 1881, whether such gift may have been made in contemplation of approaching death or otherwise, if the donor has not lived three calendar months afterwards; or by voluntarily causing property to be transferred to or vested in himself and some other person jointly, so as to give such other person benefit of survivorship; or by deed or other instrument not taking effect as a will, whereby an interest is reserved to the donor for life, or whereby he may have reserved to himself the right, by the exercise of any power, to reclaim the absolute interest in such property. This enactment removes the last argument in favour of deeds of gift, for they do not now have the effect of avoiding the payment of probate duty; and in any event, since 19th May 1853, succession duty has always been payable in respect of the benefit acquired by the successor by reason of the decease of his predecessor in title. The case of a voluntary settlement in respect of which the stamp duty has been paid is provided for by a direction that on production of such deed duly stamped, the stamp duty thereon may be returned. Personal estate includes leasehold property.

With respect to wills, the position is very different. Every man who has any property of any kind ought to make a will, especially if he desires his property to be distributed in any way different from the mode prescribed by law in case of his intestacy. Many cases occur in which the neglect to make a will is not only foolish but positively wrong. A husband has a duty to perform towards his wife which cannot be omitted without culpability; and the same may be said of the duty of a parent to his children. As to the

former, there is a danger which is often unsuspected by the owner of real estate. The law provides that on the death of such a person intestate, leaving a widow, she shall be entitled to dower out of such estate; that is to say, one-third of the rents thereof during the remainder of her life; but this right to dower is subject to any disposition which the owner of the estate may have made thereof, or any charges which he may have created thereon. In England, there is no inalienable share of property which the widow and children can claim, even as against the devisee, as is the case in Scotland. But there is a power to bar the right of the widow to her dower by means of a declaration to that effect in the conveyance to a purchaser, or in any deed subsequently executed by him relating to the property. It must be observed that the declaration in bar of dower is not necessary for the purpose of creating charges upon the estate, because dower is expressly made subject to such charges. But if the declaration has been inserted in the conveyance—without the knowledge of the purchaser—his widow will have no claim to any provision out of such estate unless it shall be made for her by the will of her husband, who, in ignorance of the necessity for making a will, dies intestate, thus leaving his widow dependent upon his heir-at-law; in numerous cases, a distant relative, who is not disposed to acknowledge that the widow of his predecessor has any claim upon him.

Again, as to his children, the possessor of real estate ought not to forget that in the case of freehold property it will descend upon his eldest son as heir-at-law; thus leaving his younger sons and his daughters unprovided for except as to their respective shares of his personal estate, which may be of small value, or even insufficient for the payment of his debts. If the property should be copyhold, it would descend to the customary heir, who might be the eldest son, the youngest son, or all the sons as tenants in common in equal undivided shares; but in any event, the daughters would remain unprovided for.

A DEAD SHOT.

AN INCIDENT IN 1801.

THE following singular story is perhaps worth putting on record because the narrative is strictly true.

In the year 1801, a fine old Jacobean house, known as Chatford House, situated on the borders of Devon and Somerset, was in the occupation of a Mr Edward Leggett, a wealthy farmer, and his two sons. The house, like many of its class, had originally been built so that its ground-plan formed the letter **E**, a centre, with projecting doorway, and two wings; but one wing had been taken down altogether, as well as a portion of the other, so that the ground-plan became thereby altered and took this form, **t**, the centre doorway remaining untouched. This should be remembered, in order to understand the circumstances of the principal incident of the narrative. Over the projecting doorway was a room which went by the name of the 'Oratory,' probably on account of its large projecting bay window, which gave it somewhat of an ecclesiastical appearance, and from this window a view could be obtained on all sides. The small part of the wing which was left standing was used as storerooms, and access from the outside was gained by a small door, which had been injudiciously opened in the corner, or angle, when the alterations were made.

Mr Leggett possessed a large quantity of very fine old massive silver-plate, which was placed in one of the storerooms, strongly secured and locked, in the remains of the wing referred to. It was supposed that he had also a considerable sum of money locked up with the plate, as banking was not so common in remote country-places in those days.

Now it happened that, on the 23d of April 1801, Mr Leggett and his two sons had to attend a neighbouring cattle fair, and had proposed to sleep in the town, instead of returning home the same night; but, a good customer having arranged to complete a purchase early the next morning, Mr Leggett's eldest son, George, came back to Chatford very late and went quietly to bed; but the worry of the fair, and anxiety about to-morrow's

purchase, prevented him sleeping. His bedroom was at the end of the house, close to the store wing, and just above the little door in the angle already mentioned. Whilst restlessly tossing about from side to side, young Leggett heard the house clock strike two, and just after became aware of a peculiar grating noise, apparently under his window. To jump up and cautiously and silently open the casement was the work of a minute. It was a cloudy moonlight night, just light enough to show objects imperfectly, but enough for George Leggett to observe the figures of two men close to the little door in the angle immediately below, on which they were apparently operating with some cutting tool, which had produced the grating noise he had heard. George, who was a young man of great intelligence, quick judgment, and ready resource, instantly comprehending the situation, took his measures accordingly. He happened to be a member of the county yeomanry cavalry; and catching up his carabine and some ball cartridges, he silently left his room, and proceeding down the corridor—loading his carabine as he went along—soon reached the ‘Oratory’ room over the porch, whence he could see straight down on to the little door, which was then right in front of him. Silently opening the casement, he made a careful survey of the position, which a passing ray of moonlight enabled him to take in at a glance.

At the little white-painted door were the two men, whose dark figures were well thrown up by so light a background. One was stooping or kneeling, and the other was standing close behind him, their backs, of course, being turned towards their observer. Putting his carabine on full-cock and laying it carefully on the window-sill, after a deliberate aim, Leggett pressed the trigger. A loud shriek and a stifled cry followed, then all was still. Leggett stood intently watching the spot for several moments; but profound silence prevailed—not a sound was heard, not a movement was perceptible. The only other man in the house was the groom, who was quickly roused; and lanterns having been procured, he and Leggett repaired to the spot, and were not a little staggered to find both burglars lying dead. The hand of one of them still grasped a very large steel centre-bit, with which he had been operating on the door. Subsequent surgical investigation showed that the bullet had struck the back of the first man, passing through his heart, and had then entered the head of the man who was stooping or kneeling in front of him, just behind the ear, lodging in the brain. The bodies were at once removed in-doors; and at the inquest, held the next day, the following particulars were elicited:

By the side of the dead men was found a leather travelling portmanteau, containing a highly finished and elaborate set of housebreaking tools, together with a piece of candle and a preparation of phosphorus for obtaining a light, as it is needless to say that lucifer matches were unknown in 1801, their place being supplied by the old-fashioned flint and steel and tinder-box, articles not available for burglars' use. Each man was armed with a brace of pocket pistols, loaded and primed; and one of them carried a formidable-looking dagger, fitted into the breast of his coat; clearly showing that these ruffians were prepared to offer a desperate resistance, if interrupted or molested. They were both well dressed, and had quite the appearance of gentlemen. Each possessed a good watch and seals, and carried a well-filled purse. One only had a pocket-book, containing many papers, chiefly relating to money matters and betting transactions; but only one letter, which, however, proved of immense importance in throwing light on the lives and characters of the deceased burglars, and in telling the story of the attempted robbery. The letter was directed to 'Mr John Bellamy,' at an address in Shoreditch, London, and was dated from Roxburn, the name of a large neighbouring farm, and bore the initials 'J. P.,' which, with the writing, were at once recognised at the inquest as those of 'James Palmer,' the managing bailiff at Roxburn Farm, a clever and unscrupulous fellow, without any regard for truth or principle, well known in those parts, but a man whom nobody liked and everybody distrusted. This communication was in these few but significant words: 'The 23d will do best; coast clear, no fear, all straight.—J. P.'

This letter, with the tools and a full report of the whole case, was at once sent to Bow Street, London, and an investigation made by the 'Bow Street runners'—the detectives of those days—for there were then no regular 'police,' as we now understand the term. On searching the premises in Shoreditch, indicated in the letter, where John Bellamy lived, it was discovered that the supposed John Bellamy was no other than 'Jack Rolfe,' one of the most successful professional burglars of that day; and the authorities hesitated not to express their satisfaction that his career had been so cleverly cut short.

An immense quantity of stolen property, of almost every description, was found at Rolfe's lodgings in Shoreditch; and what was more important—as regards the present narrative at least—a correspondence extending over

three or four years between Mr James Palmer of Roxburn Farm and the arch-burglar John Bellamy, alias Jack Rolfe himself, by which it appeared that this robbery had been planned and arranged by Palmer, who had supplied Rolfe with the fullest information as to Mr Leggett's plate and money, as well as a neatly drawn plan of the premises, which was found amongst the papers. Palmer had also arranged the date of the robbery for the 23d of April, as he had discovered that Mr Leggett and his two sons intended to sleep out that night. Nor was this all; for only a few weeks previously, the rascal had had the effrontery to invite Rolfe to pay him a visit at Roxburn, under colour of his being a personal friend, which invitation Rolfe had readily accepted; and one of the witnesses at the inquest well remembered his coming, and at once recognised him in one of the dead men—he of the centre-bit. Rolfe was described as a quiet, pleasant, and rather gentlemanly man.

Not far from Mr Leggett's gate, a light cart and pony were found tethered early in the morning of the attempted robbery. The cart had been hired from a neighbouring market-town to convey the thieves to the scene of operations, and to bring them back with—as they fondly anticipated—a sackful of rich plunder. They had been staying a day or two at this inn as commercial travellers, calling themselves brothers, and giving the name of Sutton.

On the evidence afforded by the correspondence found in Shoreditch, Palmer was apprehended; and further investigation brought out the fact that the notorious Jack Rolfe was not only his friend, correspondent, and accomplice, but his own brother also, Rolfe being merely an 'alias' for his real name of Palmer. The two men were very much alike both in face and figure; and it came out in evidence that they belonged to a family of burglars and sharpers. One brother had been transported for life for robbery and violence; another was then in prison for fraud and theft; James had just been apprehended; and John had been shot dead whilst plying his trade. James appeared to have been the only member who had held a respectable position—that of manager of Roxburn Farm, and he could not keep away from dishonest practices. It was also further discovered that Palmer had been an accomplice in two or three mysterious burglaries which had been perpetrated in the neighbourhood during the two or three previous years, in which the thieves had displayed an accurate knowledge—even to minute

details—of the premises attacked, the habits of the inmates, and the drawers or closets where valuables were kept. All this was due to the planning and arranging of the brother James, who could at his leisure quietly take his measures on the spot; which were then carefully communicated to his brother John, who ultimately became the willing executant. Palmer was shortly after brought to trial, convicted, and sentenced to fourteen years' transportation.

The verdict of the coroner's jury was 'justifiable homicide;' for in those days of desperate and well-armed burglars, the shooting of one or two of these gentry, whilst in the act of plying their nefarious calling, was considered not only a clever but a meritorious action.

THE EVIDENCE OF THE SENSES.

THE senses are the witnesses which bring in evidence from the outer world, without which that world would for us have no existence at all; but the mind sits aloft on the judgment-seat and forms its conclusions from the evidence laid before it; and these conclusions are for the most part wonderfully correct; for, though the testimony of one sense alone might lead the mind to form an erroneous opinion, this can be rectified by discovering what one or more of the other senses have to say on the same subject. When, however—as sometimes happens under peculiar circumstances—the evidence of one sense only is available, the mind may very readily arrive at a false conclusion. As an instance of this may be cited what is often observed by surgeons in cases of hip-joint disease. The patient, usually a child, complains of severe pain in the knee, which, however, has not, so far as can be ascertained, been injured in any way. Very likely, the pain is severe enough to prevent sleep at night, so that there can be no doubt about its existence, and it may perhaps have been almost continuous for some time past. Now, in such a case the surgeon will have a shrewd suspicion of what is really amiss, and very often will at once proceed to examine the hip. This he will do, too, in spite of assurances on the part of the parents that the patient always complains of the knee and of that joint only. He does not doubt that the pain feels as if it was in the knee, but he strongly suspects, nevertheless, that the disease is in the hip; and this often proves to be the case. This is an instance of what is called ‘referred sensation.’ The nerve which conveys sensation from the knee also sends a branch to the hip-joint, and it is this anatomical fact which explains the phenomenon. It might be expected that even if the pain was not felt solely in the hip, it would at least be always felt there as well as in the knee. This, however, though sometimes the case, is by no means always so. In this instance, the patient comes not unnaturally to the conclusion that where he feels the pain, there the cause of the pain must of necessity be situated. He would be quite ready to declare that there was nothing the matter with his hip, for he cannot see into the joint and discover the disease there. He has,

in fact, to depend upon the evidence of one sense only, and the conclusion based upon the evidence of the single sensation of pain, is false.

Another instance in which the testimony of one sense alone may lead to a false conclusion as to the whereabouts of the cause of a pain is found in what often takes place after the amputation of a limb. Most people are aware that after part of a limb has been removed by the surgeon's knife, the patient may still feel as though his arm or leg, as the case may be, was entire, may feel much pain in the foot when the leg has been amputated far above the ankle. Here, in recovering from the effects of the anæsthetic, were it not for the additional evidence of his eyesight, the patient might well doubt whether his limb had been removed at all. The amusing story, in Marryat's *Jacob Faithful*, of the old sailor who, having two wooden legs, was accustomed at times to wrap them up in flannel on account of the rheumatic pains which he said he felt in them, is not so very extravagant after all. It is not, however, altogether correct, as it represents the man feeling these pains in his legs *long* after they had been amputated. As a matter of fact, the false impression passes off before very long. The explanation given by physiologists is as follows: The severed nerve in the stump is irritated and gives rise to pain; and inasmuch as irritation to this nerve-trunk has hitherto been always caused by irritation of its ultimate filaments distributed to the foot and leg, the mind continues for some time to believe that the sensation still proceeds from thence.

We may glance at another and very similar instance of referred sensations occurring also in surgical practice. Amongst the rarer operations of what is termed plastic, and, by Sir James Paget, 'decorative' surgery is that by which a new nose is formed by calling in the aid of the tissue of other parts of the body. This has been done by bringing a flap of skin cut from the forehead down over the nasal bones. The flap retains its connection with the deeper tissues at a point between the eyes by means of a small pedicle, and thus its blood-vessels and nerves are not all severed. This flap is not simply pulled down from the forehead—it is twisted at the pedicle, so that the raw surface lies on the bones of the nose. Now, for some time after this operation has been performed, any irritation in the nose is referred by the mind to that part of the forehead from which the flap of skin was taken; and therefore, if a fly crawls over the patient's nose, it appears to him to be creeping across his forehead. Before the operation, whenever the nerve-

ends in the flap were irritated, it was caused by something touching the forehead, and it is some time before the mind ceases to refer such irritation to that part of the face.

Leaving, now, the domain of surgery, we may notice two simple experiments mentioned by physiologists, which all can perform for themselves. They both prove that conclusions formed upon the evidence of the sense of touch alone may be quite incorrect. By crossing the second finger over the first, and then placing a marble between the tips of the fingers, we get a sensation that leads us to suppose that there must be two marbles instead of one only. This is because two points in the fingers are touched simultaneously, which in the ordinary position could only be touched at the same moment by two marbles. Judging, then, from the sense of touch alone, the mind infers that there are two round hard substances beneath the finger-tips; but the evidence of eyesight and the knowledge that we have placed but one marble in position, corrects the misapprehension. Again, if we take a pair of compasses the points of which are not sufficiently sharp to prick the skin, and separating the extremities rather more than an inch from one another, draw them across the cheek transversely from a little in front of one ear to the lips, we shall be tempted to think, from the evidence of touch alone, that the points are becoming more widely separated. By measuring the distance between the two points afterwards, we can assure ourselves that this has not been so; but whilst the compasses were being drawn along the cheek, and still more when they had reached the lips, the impression that the distance between the points increased was very strong. This delusion is said to depend upon the fact, that some parts of the cutaneous covering of the body are much more plentifully supplied with nerves than others. It is stated that the mind probably forms its idea of the distance between two points on the skin which are irritated in any way—as, for instance, by the points of a pair of compasses touching the surface—by the number of nerve-endings lying between these two points which remain unirritated. Thus, if there be fewer unirritated nerve-endings lying between the two points of the compasses when placed on the cheek, than there are when they are placed at the lips, the mind will infer that the distance between these points is smaller in the former position than in the latter.

THE STATE'S NEGLECT OF DENTISTRY.

The machinery of the State is so vast that it may well be imperfect here and there. It frequently falls to the lot of individuals to point out how the tide of progress has left details in a condition of inefficiency. We note a recent instance of this. In August last, at the annual meeting of the British Dental Association, Mr George Cunningham, one of its members, drew attention to the backwardness of the practice of dentistry in the various departments of the State. The substance of his case amounted to this: In the army and navy, unskilled practitioners wielded uncouth and inefficient instruments in following antiquated and unscientific methods; while the police force and the employees of the India and Post offices by no means derived the full advantages of this department of medical science. Mr Cunningham was bold enough to include the inmates of prisons among those whose interests were neglected; and of course the principle of the humane treatment of criminals is already conceded in the appointment of jail chaplains and surgeons. We need not enter here into the voluminous details with which Mr Cunningham substantiated his case. The broad conclusions he would seem to draw are these: that the medical practitioner employed by the State should possess a more thorough knowledge of dentistry; that, where necessary, the services of the completely trained and qualified dentist should be secured; and that full resort should be had to the remedial resources of dental science. Seeing the suffering caused by diseases of the teeth, and the subtle and intimate connection existing between dental and other maladies, we trust Mr Cunningham's paper may receive the consideration it would seem to deserve.

THE BOARD OF TRADE JOURNAL.

Persons wishing to keep up their information on subjects connected with trade and changes in foreign tariffs may do so by consulting the *Board of Trade Journal*, the first numbers of which have just been issued. An attempt is also made in this journal to give the public information as to trade movements abroad, from the communications of the different consuls and colonial governors. Some of the periodical statistical returns of the Board of Trade will also be included from time to time. Such a journal deserves the support of all merchants and manufacturers at all interested in our foreign trade. Formerly, the commercial Reports from Her Majesty's representatives abroad did not see the light for months, or perhaps a year, after they were received; now, these have some chance of being really useful to persons interested in foreign trade and to the community at large.

LOVE'S SEASONS.

LOVE came to my heart with the earliest swallow,
The lark's blithe matins and breath of Spring;
With hyacinth-bell and with budding sallow,
And all the promise the year could bring.

Love dwelt in my heart while the Summer roses
Poured forth their incense on every hand;
And from wood and meadow and garden-closes
The sweet bird-voices made glad the land.

Love grew in my heart to its full fruition
When Autumn lavished her gifts untold,
And answered earth's myriad-voiced petition
With orchard-treasure and harvest-gold.

Love waned in my heart when the snows were shaken
From Winter's hand o'er the rose's bed;
And never again shall my soul awaken
At Hope's glad summons—for Love lies dead.

W. P. W.

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FOOTNOTES:

[\[1\]](#) It should be understood that this series of articles deals mainly with English as apart from Scotch law.

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